

| Application Information                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>BLA/NDA or Efficacy Supplement STN#</b>                                                                                                                | 125742/45                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Proprietary Name:</b><br><i>NOTE: If a primary and alternate are proposed, specify both names, identifying which is primary and which is alternate</i> | COMIRNATY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Established/Proper Name:</b>                                                                                                                           | COVID-19 Vaccine, mRNA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Dosage Form/Strength, if applicable:</b>                                                                                                               | Suspension for injection. After preparation, a single dose is 0.3 mL (30 mcg).                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>Applicant:</b>                                                                                                                                         | BioNTech Manufacturing GmbH                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>License No.:</b>                                                                                                                                       | 2229 (active)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>If foreign applicant, is a U.S. Agent identified?</b>                                                                                                  | Yes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>Date of Application:</b>                                                                                                                               | December 16, 2021                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Date of Receipt:</b>                                                                                                                                   | December 16, 2021                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Date clock started after Refusal to Accept for Filing (UN):</b>                                                                                        | N/A                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>PDUFA Goal Date:</b>                                                                                                                                   | June 17, 2022                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Date of Filing Meeting:</b>                                                                                                                            | January 31, 2022                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Filing Date:</b>                                                                                                                                       | February 14, 2022                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>Proposed indication(s)/Proposed change(s):</b>                                                                                                         | <p><b>Initial licensed indication:</b><br/>COMIRNATY is a vaccine indicated for active immunization to prevent coronavirus disease 2019 (COVID-19) caused by severe acute respiratory syndrome coronavirus 2 (SARS-CoV-2) in individuals 16 years of age and older.</p> <p><b>Proposed indication:</b><br/>COMIRNATY is a vaccine indicated for active immunization to prevent coronavirus disease 2019 (COVID-19) caused by severe acute respiratory syndrome coronavirus 2 (SARS-CoV-2) in individuals <b>12</b> years of age and older.</p> |
| <b>Submission Type:</b><br><i>Refer to the <a href="#">CDER web site for more information on 505(b)(2) assessments</a>.</i>                               | <p><i>Indicate by using <b>Bold</b> the type of submission:</i></p> <p>BLA<br/>NDA<br/><b>Efficacy Supplement</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>Review Classification:</b>                                                                                                                             | <p><i>Indicate by using <b>Bold</b> the type of review classification</i></p> <p>Standard<br/><b>Priority</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                              |
|                                                                                                                                                           | Resubmission after withdrawal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

| Application Information                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                      |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Resubmission after refuse to file                                                                                                                                                                                                                                                                                                    |
| <b>Part 3 Combination Product?</b><br><b>Note 1:</b> Verify whether the applicant accurately designated the product as a combination product or not. If designated as a combination product, verify whether the type selected (e.g., CPN, CP1, CP2, etc.) is accurate. If RPM disagrees with the applicant's designation or the type of combination, consult with the file Chair and appropriate management and notify the applicant immediately of CBER's assessment and request a corrected form 356h. | <i>If yes, indicate by using <b>Bold</b> which type of combination product and contact the Office of Combination Products (OCP) and copy them on all Inter-Center consults (if applicable).</i><br><br><b>Note 2 :</b> Notification of OCP should only be done after verification and applicant notification as explained in Note 1. |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>CPN - Not a Part 3 Combination Product</b>                                                                                                                                                                                                                                                                                        |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP1 - Convenience Kit of Co-package                                                                                                                                                                                                                                                                                                  |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP2 - Prefilled Drug Delivery Device/System (syringe, patch, etc.)                                                                                                                                                                                                                                                                   |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP3 - Prefilled Biologic Delivery Device/System (syringe, patch, etc.)                                                                                                                                                                                                                                                               |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP4 - Device Coated/Impregnated/Otherwise Combined with Drug                                                                                                                                                                                                                                                                         |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP5 - Device Coated/Otherwise Combined with Biologic                                                                                                                                                                                                                                                                                 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP6 - Drug/Biologic Combination                                                                                                                                                                                                                                                                                                      |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP7 - Separate Products Requiring Cross-Labeling                                                                                                                                                                                                                                                                                     |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP8 - Possible Combination Based on Cross Labeling or Separate Products                                                                                                                                                                                                                                                              |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | CP9 - Other Type of Part 3 Combination Product (e.g. Drug/Device/Biologic Product)                                                                                                                                                                                                                                                   |
| <b>What is the Application Type?</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <i>Indicate the type by using <b>Bold</b></i>                                                                                                                                                                                                                                                                                        |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>Fast Track</b>                                                                                                                                                                                                                                                                                                                    |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Rolling Review                                                                                                                                                                                                                                                                                                                       |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Orphan Designation (for this indication)                                                                                                                                                                                                                                                                                             |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Rare disease                                                                                                                                                                                                                                                                                                                         |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Breakthrough Therapy Designation                                                                                                                                                                                                                                                                                                     |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Triggers PREA                                                                                                                                                                                                                                                                                                                        |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Other:                                                                                                                                                                                                                                                                                                                               |
| <b>PMR response:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <i>Indicate by using <b>Bold</b> the type of PMR response</i>                                                                                                                                                                                                                                                                        |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | FDAAA [505(o)]                                                                                                                                                                                                                                                                                                                       |

| Application Information                                                                                                                                  |                                                                                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                                          | <b>PREA deferred pediatric studies [21 CFR 314.55(b)/21 CFR 601.27(b)]</b>                                                                      |
|                                                                                                                                                          | Accelerated approval confirmatory studies [21 CFR 314.510/21 CFR 601.41]                                                                        |
|                                                                                                                                                          | Animal rule postmarketing studies to verify clinical benefit and safety [21 CFR 314.610/21 CFR 601.42]                                          |
| <b>PMC response:</b>                                                                                                                                     | <i>Indicate by using <b>Bold</b> the type of PMC response</i>                                                                                   |
|                                                                                                                                                          | Clinical Safety [506B PMC]                                                                                                                      |
|                                                                                                                                                          | Clinical Efficacy [506B PMC]                                                                                                                    |
|                                                                                                                                                          | Clinical Pharmacology [506B PMC]                                                                                                                |
|                                                                                                                                                          | Non-Clinical Toxicology [506B PMC]                                                                                                              |
|                                                                                                                                                          | CMC or Stability related [non-506B PMC]                                                                                                         |
| <b>Has the Office PMR/PMC Coordinator been notified that submission is in response to PMC or PMR?</b>                                                    | <i>Indicate by using <b>Bold</b> either yes or no.</i><br><b>Yes</b><br>No                                                                      |
| <b>Was either an Environmental Assessment or Claim of Categorical Exclusion included (refer to <a href="#">Job Aid 910.20</a> for more information)?</b> | <i>Indicate by using <b>Bold</b> either yes or no.</i><br><b>Yes</b><br>No<br><br>Note: Included in STN 125742/45.1 submitted January 28, 2022. |
| List referenced IND Number(s):                                                                                                                           |                                                                                                                                                 |

**IS THE APPLICATION FILEABLE?  X  Yes /   No**

If the application is not fileable from the RPM perspective, state the rationale for your recommendation and provide letter ready comments to be sent to the Applicant in the refuse to file letter.

**Rationale:**

Please also identify and list any potential review issues in letter ready comment format to be forwarded to the Applicant in the filing letter or the Deficiency Identified (DI) letter (74-day letter).

**Table 1: Goal Dates/ Product Names/ Classification Properties**

|    | <b>Goal Dates/ Product Names/ Classification Properties</b>                                                                                                                                                                                                                                                          | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 1. | PDUFA and Action Goal dates correct in tracking system?                                                                                                                                                                                                                                                              | ✓          |           |           |                |
| 2. | Is there a formal communication plan? Have the dates been captured in the appropriate regulatory system?                                                                                                                                                                                                             |            | ✓         |           |                |
| 3. | Are the proprietary, established/proper, and applicant names correct in tracking system?                                                                                                                                                                                                                             | ✓          |           |           |                |
| 4. | Is the review schedule standard or priority (S or P) and are all classifications/properties entered in the appropriate regulatory system (e.g., workload management, review schedule, STN characteristics)?<br><br>If unable to make corrections, contact (b) (6) <a href="mailto:____@fda.hhs.gov">@fda.hhs.gov</a> | ✓          |           |           | Priority       |

**Table 2: Application Integrity Policy**

|    | <b>Application Integrity Policy</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 5. | Is the application affected by the Application Integrity Policy (AIP)?<br><b>Check the AIP list at:</b><br><a href="https://www.fda.gov/inspections-compliance-enforcement-and-criminal-investigations/compliance-actions-and-activities/application-integrity-policy">https://www.fda.gov/inspections-compliance-enforcement-and-criminal-investigations/compliance-actions-and-activities/application-integrity-policy</a><br><b>If yes</b> , explain in comment column and discuss with immediate supervisor. |            | ✓         |           |                |
| 6. | <b>If affected by AIP</b> , has (b) (6) & (b) (6) been notified of the submission? <b>If yes</b> , date notified:                                                                                                                                                                                                                                                                                                                                                                                                |            |           | ✓         |                |

**Table 3: User Fees****SOPP 8406 CBER Processing of PDUFA Application Payments**

|    | <b>User Fees</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                        |
|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------|
| 7. | Is Form 3397 (User Fee Cover Sheet) included with authorized signature? [See SOPP 8406 for details on which products require a coversheet].                                                                                                                                                                                                                                                                                                                                                                                                             | <i>Indicate by using <b>Bold</b></i>                                   |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | YES                                                                    |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | NO                                                                     |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <b>N/A</b>                                                             |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Comment                                                                |
| 8. | Is the applicant attempting to <b>redeem</b> a priority review voucher with this application? <b>Notify</b> (b) (6) <a href="mailto:f@fda.hhs.gov">@fda.hhs.gov</a> <b>to confirm payment of priority review voucher fee.</b><br><b>NOTE:</b> If the applicant is requesting to receive a priority review voucher, see Table 12.                                                                                                                                                                                                                        | No                                                                     |
| 9. | <b>User Fee Status</b><br><b>Verify payment status with</b> (b) (6) <a href="mailto:f@fda.hhs.gov">f@fda.hhs.gov</a> . <b>If a user fee is required and it has not been paid, the application is unacceptable for filing following a 5-day grace period. Review stops. Send Unacceptable for Filing (UN) letter and contact user fee staff [See SOPP 8406].</b><br><b>Note:</b> CBER (b) (6) will monitor arrears status daily and proactively alert affected Offices that applications and supplements should not be received if a firm is in arrears. | <i>Indicate the payment for this application by using <b>BOLD</b>:</i> |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Paid                                                                   |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Exempt (orphan, government)                                            |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Waived (e.g., small business, public health)                           |
|    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <b>Not required</b>                                                    |

## Format and Content

**Table 4: Overall Format/Content**

|     | Overall Format/Content                                                                                                                                                                                                                                                                                                                    | YES | NO | NA | Comment |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------|
| 10. | Does electronic submission follow the eCTD guidance?<br><a href="#"><u>Providing Regulatory Submissions in Electronic Format – Certain Human Pharmaceutical Product Applications and Related Submissions Using the eCTD Specifications</u></a><br><b>If not</b> , explain (e.g., waiver granted).                                         | ✓   |    |    |         |
| 11. | <b>Index:</b> Does the submission contain an accurate comprehensive index? (e.g., table of contents)                                                                                                                                                                                                                                      | ✓   |    |    |         |
| 12. | Is the submission complete as required under 21 CFR 314.50 (NDAs/NDA efficacy supplements) or under 21 CFR 601.2 (BLAs/BLA efficacy supplements) including:<br>* RTF issues, a “No” means the application is unacceptable for filing.<br><b>If any of the following are “no”</b> , explain why (i.e., datasets are not in correct format) |     |    |    |         |
| a.  | • Legible*                                                                                                                                                                                                                                                                                                                                | ✓   |    |    |         |
| b.  | • English* (or translated into English)                                                                                                                                                                                                                                                                                                   | ✓   |    |    |         |
| c.  | • Pagination                                                                                                                                                                                                                                                                                                                              | ✓   |    |    |         |
| d.  | • Navigable hyperlinks* (electronic submissions only)                                                                                                                                                                                                                                                                                     | ✓   |    |    |         |
| e.  | • Datasets present in software compatible format*                                                                                                                                                                                                                                                                                         | ✓   |    |    |         |
| f.  | • All sections are present*                                                                                                                                                                                                                                                                                                               | ✓   |    |    |         |

|     | Overall Format/Content                                                                                                                                                                                                                                                                                                                                                                                    | YES | NO | NA | Comment |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------|
| 13. | <p>Companion application received if a shared or divided manufacturing arrangement (<b>BLA only</b>) or, cross-reference to Master File received for proprietary information not included with submission.</p> <p>If yes, insert companion application BLA # or cross-referenced Master File #</p> <p><b>If missing, this may be a Refuse to file issue, discuss with review team and management.</b></p> |     |    | ✓  |         |

Table 5: Applications in The Program (PDUFA)

|     | Applications in The Program (PDUFA)                                                                                                                                                                                                                                                            | YES | NO | NA | Comment |
|-----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------|
| 14. | Were there agreements made at the applicant's pre-submission meeting (and documented in the minutes) regarding certain late submission components that could be submitted within 30 days after receipt of the original application?                                                            |     | ✓  |    |         |
| 15. | <ul style="list-style-type: none"> <li>If so, were the late submission components all submitted within 30 days? List any late submission components which arrived after 30 days in the comments box.</li> </ul> <p><b>(This is an RTF issue, discuss with review team and management.)</b></p> |     |    | ✓  |         |

## Forms and Certifications

16. **Electronic forms and certifications with electronic signatures (scanned, digital, or electronic) are acceptable. Forms** include user fee cover sheet (3397), application form (356h), financial disclosure (3454/3455), and clinical trials (3674); **Certifications** include: debarment certification and pediatric certification on Pediatric Plan for waived or deferred Pediatric studies.

**Table 6: Application Form**

|     | <b>Application Form</b>                                                                                                                 | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b>                                                                                                     |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|--------------------------------------------------------------------------------------------------------------------|
| 17. | Is form FDA 356h included with authorized signature per 21 CFR 601.2(a) (BLAs) or per 21 CFR 314.50(a) (NDAs)?                          | ✓          |           |           |                                                                                                                    |
| 18. | If foreign applicant, has a U.S. agent signed the form [see 21 CFR 314.50(a)(5)]?                                                       | ✓          |           |           | BioNTech Manufacturing GmbH is the foreign applicant and the U.S. Agent, Amit Patel, Pfizer, Inc. signed the form. |
| 19. | Is a comprehensive and readily located list of all clinical sites listed on the form or attached to the form?                           | ✓          |           |           | Included in section 5.2                                                                                            |
| 20. | Are all establishments and manufacturing facilities, along with their registration numbers, listed on the form or attached to the form? | ✓          |           |           |                                                                                                                    |

**Table 7: Financial Disclosure**

|     | <b>Financial Disclosure</b>                                                                                                                                                                                                                                                                                                           | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b>                                                                                                                                 |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|------------------------------------------------------------------------------------------------------------------------------------------------|
| 21. | <p>Are financial disclosure forms FDA 3454 and/or 3455 included with authorized signature per 21 CFR 54.4(a)(1) and (3)?</p> <p><b>Forms must be signed by the APPLICANT, not an Agent [see 21 CFR 54.2(g)].</b></p> <p><b>Note:</b> Financial disclosure is required for bioequivalence studies that are the basis for approval.</p> | ✓          |           |           | <p>The Phase 1/2/3 study C4591001 was conducted by Pfizer; therefore, Pfizer submitted the forms 3454 and 3455 signed by (b) (6) (Pfizer).</p> |



**Table 8: Clinical Trials Database and Study Data**

|     | <b>Clinical Trials Database &amp; Study Data</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b>                                                          |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|-------------------------------------------------------------------------|
| 22. | <p>Is form FDA 3674 included with authorized signature?</p> <p><b><i>If yes, ensure that the application is also coded with the supporting document category, "Certification Form 3674."</i></b></p> <p><b><i>If no, ensure that language requesting submission of the form is included in the STN Assignment Application letter (also called the Acknowledgement Letter).</i></b></p>                                                                                                                                               | ✓          |           |           | In form 3674, Pfizer checked box C in item 9 – Certification Statement. |
| 23. | <p>Are National Clinical Trial (NCT) Numbers included on 3674?</p> <p><b><i>If yes, enter in the appropriate regulatory tracking database (RMS/BLA).</i></b></p> <p><b><i>If no, request in either the Filing or Filing Issues (also called the Deficiencies Identified (DI)) letters. The NCT numbers will be referenced in the final action letter.</i></b></p>                                                                                                                                                                    | ✓          |           |           | NCT04368728<br>(Study C4591001)                                         |
| 24. | <p>Determine if Study Data Tabulation Model (SDTM), Analysis Data Model (ADaM) data, Standard for Exchange of Nonclinical Data (SEND) or CTD datasets – Module 4 or Module 5 are present.</p> <p><b><i>If yes, refer to <a href="#">CBER JA 900.18: Study Data Validation Process</a>.</i></b></p> <p><b><i>Note: The Data Standards Representative will email the validation reports to the RPM upon completion. The email and validation reports should be attached to the filing checklist when uploading to the CER.</i></b></p> | ✓          |           |           | Please see attached email and validation reports.                       |

|     | Clinical Trials Database & Study Data                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | YES | NO | NA | Comment                                                                                                                                                                                                                                     |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 25. | <p>Is study data acceptable based on the validation reports? <b>Refer to CBER JA 900.18: Study Data Validation Process.</b></p> <p><b>Note 1:</b> If there are errors, collaborate with discipline reviewer(s) and the (b) (6) representative to draft an information request for minor corrections or a refuse to file letter as appropriate.</p> <p><b>Note 2:</b> Review decision regarding acceptance of data should be documented in the filing review checklist or memo and in the discipline reviewer's review memo.</p> | ✓   |    |    | <p>An IR regarding the datasets was sent to the applicant on January 19, 2022. However, the response will not preclude the submission from being fileable.</p> <p>STN 125742.45.2 was received on 2/2/22 in response to the dataset IR.</p> |

**Table 9: Debarment Certification**

|     | Debarment Certification                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | YES | NO | NA | Comment |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------|
| 26. | <p>Is a correctly worded Debarment Certification included with authorized signature?</p> <p><b>Certification is not required for supplements if the debarment certification was submitted in the original application. If foreign applicant, both the applicant and the U.S. Agent must sign the certification [per Guidance for Industry: Submitting Debarment Certifications].</b></p> <p><b>Note:</b> Debarment Certification should use wording in FD&amp;C Act Section 306(k)(1) i.e., "[Name of applicant] hereby certifies that it did not and will not use in any capacity the services of any person debarred under section 306 of the Federal Food, Drug, and Cosmetic Act in connection with this application..." Applicant may <b>not</b> use wording such as, "To the best of my knowledge..."</p> | ✓   |    |    |         |

**Table 10: Exclusivity**

|     | <b>Exclusivity</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 27. | <p>Does another product (same active moiety) have orphan exclusivity for the same indication?</p> <p><b>Check the Orphan Drug Designations and Approvals list at:</b><br/> <a href="http://www.accessdata.fda.gov/scripts/opdlisting/oopd/index.cfm">http://www.accessdata.fda.gov/scripts/opdlisting/oopd/index.cfm</a></p> <p><b>If yes, consult</b> (b) (6) .</p> <p><b>See Jurisdiction intranet site for current CBER contact:</b><br/> <a href="http://inside.fda.gov:9003">http://inside.fda.gov:9003</a> (b) (6) /ucm023543.htm</p> |            | ✓         |           |                |
| 28. | <p>If another product has orphan exclusivity, is the product considered to be the same product according to the orphan drug definition of sameness [see 21 CFR 316.3(b)(13)]?</p> <p><b>If yes, consult</b> (b) (6) .</p> <p><b>See Jurisdiction intranet site for current CBER contact:</b><br/> <a href="http://inside.fda.gov:9003/cber">http://inside.fda.gov:9003/cber</a> (b) (6) /ucm023543.htm</p>                                                                                                                                  |            |           | ✓         |                |

|     | Exclusivity                                                                                                                                                                                                                                                                                                                                                                                                                                   | YES | NO | NA | Comment                                                                                  |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|------------------------------------------------------------------------------------------|
| 29. | Has the applicant requested reference product designation and 12-year exclusivity? <i>(Applies to first licensed product under section 351(a) for Original BLAs/BLA supplements only, request protects against biosimilar applications under 351(k)(7))</i><br><br><i>If yes, refer to <a href="#">JA 900.11 Determining Exclusivity Period of Reference Product Based on First Licensure Date</a> for procedures and alert CMC reviewer.</i> | ✓   |    |    | The applicant has requested umbrella exclusivity to this supplemental BLA for COMIRNATY. |
| 30. | Has the applicant requested pediatric exclusivity under BPCA?<br><br><i>If yes, email (b) (6) at: (b) (6) <a href="mailto:(b) (6)@fda.hhs.gov">@fda.hhs.gov</a></i>                                                                                                                                                                                                                                                                           |     | ✓  |    |                                                                                          |

Table 11: Priority Review Voucher Requests

|     | Priority Review Voucher Requests                                                                                                                                                                                                                                                                                   | YES | NO | NA | Comment |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------|
| 31. | Has the applicant requested a priority review voucher? <i>If yes, notify: (b) (6) <a href="mailto:(b) (6)@fda.hhs.gov">@fda.hhs.gov</a> that a voucher request has been received and select the type below?</i><br><i>Note: Contact your Office (b) (6) representative for additional review process guidance.</i> |     | ✓  |    |         |
| 32. | <b>Rare pediatric disease</b>                                                                                                                                                                                                                                                                                      |     | ✓  |    |         |
| 33. | <b>Material Threat Medical Counter Measures (MCM)</b>                                                                                                                                                                                                                                                              |     | ✓  |    |         |
| 34. | <b>Tropical disease</b>                                                                                                                                                                                                                                                                                            |     | ✓  |    |         |

**Table 12: Pediatrics**

|     | <b>Pediatrics</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 35. | <p><b>Pediatric Research Equity Act (PREA)</b><br/>Does the application trigger PREA? <i>BLAs/efficacy supplements for new active ingredients, new indications (not change of age range only), new dosage forms, new dosing regimens, or new routes of administration trigger PREA.</i></p>                                                                                                                                                                                                                                                                                                                           |            | ✓         |           |                |
|     | <p><b>a. If yes</b>, has the applicant included or referenced the agreed upon pediatric study plan (PSP)? This should have been submitted at least 210 days prior to submission of this application. [See <a href="#">JA851.05 Instructions for Processing PSPs</a>.] If no agreed PSP is included or referenced in the submission, consider RTF. Discuss with your Supervisor.</p>                                                                                                                                                                                                                                   |            |           | ✓         |                |
|     | <p><b>b. If yes</b>, has the applicant submitted the pediatric assessment, or provided documentation requesting either a waiver and/or deferral in accordance with their agreed PSP?</p> <p><b>Note 1: All waiver &amp; deferral requests, pediatric plans, and pediatric assessment studies must be reviewed by (b) (6) prior to approval of the application/supplement.</b></p> <p><b>Note 2: If the applicant deviated from their agreed PSP discuss with Supervisor and Office representative to (b) (6) .</b></p> <p><b>Note 3: Pediatric items are looked at by both the RPM and the Clinical Reviewer.</b></p> |            |           | ✓         |                |

|     | Pediatrics                                                                                                                                                                                                | YES | NO | NA | Comment                                                                                                                                                                                                                                                                                                                                             |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 36. | Does the submission include a pediatric assessment in response to a deferred Pediatric study?<br><b>All pediatric assessment studies must be reviewed by (b) (6) prior to approval of the supplement.</b> | ✓   |    |    | This supplement includes the pediatric assessment for children 12 through 15 years of age as described in PMR #1 of the August 23, 2021 approval letter for the original COMIRNATY BLA.<br><br><i>PMR #1: Deferred pediatric Study C4591001 to evaluate the safety and effectiveness of COMIRNATY in children 12 years through 15 years of age.</i> |

Table 13: Proprietary Name

|     | Proprietary Name                                                                                                                                                                                                                                                                                                                                                  | YES | NO | NA | Comment |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|---------|
| 37. | Is a proposed proprietary name submitted?<br><br><b>If yes, ensure that PNR is selected for this submission in the regulatory system. If no, include missing PNR in an information request. [See <a href="#">SOPP 8001.4: Review of Proprietary Names for CBER Regulated Products</a> and <a href="#">JA 910.02 Proprietary Name Review (PNR) Processing</a>]</b> |     |    | ✓  |         |
| a.  | Are the PDUFA milestones correct for review of proprietary name?                                                                                                                                                                                                                                                                                                  |     |    | ✓  |         |
| b.  | Has (b) (6) reviewer been notified?                                                                                                                                                                                                                                                                                                                               |     |    | ✓  |         |

Table 14: REMS

|    | REMS                 | YES | NO | NA | Comment |
|----|----------------------|-----|----|----|---------|
| 38 | Is a REMS submitted? |     | ✓  |    |         |

Table 15: Prescription Labeling-1

|     |                                 |                                        |
|-----|---------------------------------|----------------------------------------|
| 39. | <b>Prescription Labeling</b>    | Check all types of labeling submitted. |
| a.  | Package Insert (PI)             | ✓                                      |
| b.  | Patient Package Insert (PPI)    |                                        |
| c.  | Patient Oriented Labeling (POL) |                                        |

|     |                              |                                        |
|-----|------------------------------|----------------------------------------|
| 39. | <b>Prescription Labeling</b> | Check all types of labeling submitted. |
| d.  | Instructions for Use (IFU)   |                                        |
| e.  | Medication Guide (MedGuide)  |                                        |
| f.  | Carton labels                |                                        |
| g.  | Immediate container labels   |                                        |
| h.  | Diluent                      |                                        |
| i.  | Other (specify):             |                                        |

**Table 16: Prescription Labeling-2**

|    | <b>Prescription Labeling</b>                                                                                                                                                                                                                   | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 40 | Is Electronic Content of Labeling (COL) submitted in SPL, PDF, and Word format?<br><i>If no, request applicant to submit SPL and Word before the filing date.</i>                                                                              | ✓          |           |           |                |
| 41 | Is the PI submitted in Physicians Labeling Rule (PLR) and Pregnancy and Lactation Labeling Rule (PLLR) format?<br><i>If no, request applicant to submit labeling in corrected format (PLR and PLLR, as applicable) before the filing date.</i> | ✓          |           |           |                |
| 42 | Was all labeling (e.g., PI, PPI, MedGuide, POL/IFU, carton and immediate container labels) consulted to (b) (6)                                                                                                                                | ✓          |           |           |                |

**Table 17: Other Consults**

|    | <b>Other Consults</b>                                                                                         | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|----|---------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 43 | Are additional consults needed? (e.g., CDER, CDRH)<br><br><i>If yes, specify consult(s) and date(s) sent:</i> |            | ✓         |           |                |

**Table 18: IND/Pre- BLA/NDA Meeting Minutes in CBER Connect**

|     | <b>Meeting Minutes in CBER Connect</b>                                                                                                                              | <b>YES</b> | <b>NO</b> | <b>NA</b> | <b>Comment</b> |
|-----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------|----------------|
| 44. | End-of Phase 2 meeting(s)?<br><b>Date(s):</b> _____<br><br><i>If yes, reference IND number where minutes can be found in the filing meeting agenda and summary.</i> |            | ✓         |           |                |

|     | Meeting Minutes in CBER Connect                                                                                                                                                                                                                                                                                                                                                                                                                        | YES | NO | NA | Comment                                                                                                                                                                           |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 45. | Pre-BLA/Pre-NDA/Pre-Supplement meeting(s)?<br><b>Date(s):</b> <u>9/24/2021 and 11/12/2021</u><br><br><i>If yes, reference IND number where minutes can be found in the filing meeting agenda and summary. For PDUFA BLAs, check for any late components agreed upon during Pre-BLA meeting, if held, and a formal communication plan. All late components must be submitted by day 30 after the initial submission is received from the applicant.</i> | ✓   |    |    | IND 19736.434: We provided comments and advice regarding the supplemental BLA for adolescents 12 through 15 years of age on 9/24/2021 and request for shell tables on 11/12/2021. |
| 46. | Any Special Protocol Assessments (SPAs)?<br><b>Date(s):</b> _____<br><br><i>If yes, reference IND number where minutes can be found in the filing meeting agenda and summary.</i>                                                                                                                                                                                                                                                                      |     | ✓  |    |                                                                                                                                                                                   |

**Append C 905.01.01** here, if submission contains 505(b)(2).

See [505\(b\)\(2\) Regulatory Program](#) more information on 505(b)(2) and append [C 905.01.01: RPM FILING REVIEW CHECKLIST FOR 505\(b\)\(2\) APPLICATIONS \(NDA and NDA Supplements only\)](#) here prior to filing review.



**RPM FILING REVIEW CONCURRENCE****Application number:** STN 125742/45

(b) (6)

2/7/2022

Date

2/7/2022

Date

I concur with the reviewers recommendation?  X  Yes /   No If no, provide a justification.

(b) (6)

(b) (6)

2/7/2022

Date

I concur with the reviewer(s) recommendation?  X  Yes /   No If no, provide a justification.

(b) (6)

(b) (6)

2/7/2022

(or equivalent second line supervisor)

Date